

11.	23CV0238	TRACY RUGER vs. EL DORADO COUNTY ET AL
Demurrer		

This case involves the death of an in-custody individual, James Sherfield Morrison (“James”). Plaintiff Tracy Ruger, James’ mother, alleges the following in her Second Amended Complaint (“SAC”): On November 2, 2021, James was admitted to the El Dorado County Jail. During intake, Defendant Wellpath Community Care, LLC, evaluated him and decided to place him in a general population cell rather than under suicide watch, despite awareness of his suicidal tendencies. Once in general population, James allegedly was not adequately supervised by El Dorado County personnel, resulting in his death by suicide.

Defendant County of El Dorado, and individual Defendants (collectively “Defendants”) demur to the SAC.¹

Standard of Review - Demurrer

A demurrer tests the sufficiency of a complaint by raising questions of law. *Rader Co. v. Stone* (1986) 178 Cal.App.3d 10, 20. In determining the merits of a demurrer, all material facts pleaded in the complaint and those that arise by reasonable implication, but not conclusions of fact or law, are deemed admitted by the demurring party. (*Moore v. Conliffe*, 7 Cal.4th 634, 638; *Interinsurance Exchange v. Narula*, 33 Cal.App.4th 1140, 1143. The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. *Flynn v. Higham* (1983) 149 Cal.App.3d 677, 679.

Rodas v. Spiegel (2001) 87 Cal. App. 4th 513, 517.

Demurrer

Plaintiff’s First Amended Complaint was filed on July 18, 2024. Following a hearing on October 24, 2025, the Defendants’ demurrer was sustained with leave to amend.

The Second Amended Complaint (“SAC”) includes two causes of action: (1) Negligence and Negligence Per Se, (2) Failure to Follow Mandatory Duties Established by Law. (3) Wrongful Death and Survival Action (Government Code §§ 815.2, 815.6; Code of Civil Procedure §§ 377.30, 377.60) (4) Violation of the Tom Bane Act (Civil Code §52.1) (“Bane Act”). New to the SAC as compared to the FAC is an allegation based on Government Code § 815.6 and a statutory basis for the negligence claim (Government Code § 815.2).

Defendants demur to all causes of action, arguing that Plaintiff’s claims are barred by Gov. Code § 844.6. Further, that Plaintiff fails to allege sufficient facts to support a claim under the Bane Act against the Defendants because the SAC does not allege interference with rights

¹ Defendants Wellpath Community Care, LLC, Wellpath Management, Inc., and Wellpath Recovery Solutions, LLC are not part of this Demurrer. Their involvement in the case is stayed due to proceedings in the United States Bankruptcy Court.

through coercion, threats, or intimidation. Defendants request that the demurrer be sustained without leave to amend because there is no reasonable possibility that the following defects could be cured by amendment:

- Section 844.6 of the Government Code grants immunity from liability to public entities for injuries caused by or to a prisoner. Under Gov. Code § 844, the term “prisoner” includes persons arrested and booked in jail. (Gov. Code § 844.) As applicable here, the sole exception to this immunity arises under Gov. Code § 845.6, which permits liability when a public entity or its employees fails to summon immediate medical care for a prisoner in obvious need of such care. (See e.g. Gov. Code §§ 844.6, 845.6.). Government Code § 815.6 is not included in those enumerated exceptions. In Lucas v. City of Long Beach (1976) 60 Cal.App.3d 341, 350, the court clarified that liability for the failure to prevent a suicide is not contemplated under the exception to these statutory provisions. (Id. at p. 350.)
- Civil Code § 52.1, known as the Bane Act, allows for civil action against anyone who interferes with another’s constitutional rights through threats, intimidation, or coercion. A claim under § 52.1 “does not extend to all ordinary tort actions because its provisions are limited to threats, intimidation, or coercion that interferes with a constitutional or statutory right.” Venegas v. County of Los Angeles (2004) 32 Cal.4th 820, 843. The SAC alleges inaction, as opposed to threats, intimidation or coercion and it fails to assert a constitutional right that was interfered with.

The Court agrees. The government immunity statutes are clear, and the SAC does not contain any statutory authority or factual allegations sufficient to overcome that immunity.

Leave to Amend

There is a general policy in this state of great liberality in allowing amendment of pleadings at any stage of the litigation to allow cases to be decided on their merits. (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047; Hulsey v. Koehler (1990) 218 Cal.App.3d 1150, 1159; Hyman v. Tarplee (1944) 64 Cal.App.2d 805, 813-814.) “...it is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’ (Citations omitted.) If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. (Citations omitted.)” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) “...absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail. (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564, 176 Cal.Rptr. 704.)” (Board of Trustees of Leland Stanford Jr. University v. Superior Court (2007) 149 Cal.App.4th 1154, 1163.)

Code of Civil Procedure § 430.41(e)(1) sets an upper limit of three amendments “absent an offer to the trial court as to such additional facts to be pleaded that there is a reasonable possibility the defect can be cured to state a cause of action.” Under normal circumstances the Court would consider an additional opportunity to amend if “the defect could be cured to state a cause of action.”

In this case, however, Plaintiff has filed three Complaints, and none of these has alleged facts or specified statutory grounds that would overcome the government’s clear statutory immunity. Nor has Plaintiff filed any opposition to the demurrer or requested leave to file a Third Amended Complaint.

TENTATIVE RULING #11: DEFENDANTS’ DEMURRER IS SUSTAINED WITHOUT LEAVE TO AMEND.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.